

**SUBSTITUTE FOR
SENATE BILL NO. 296**

A bill to amend 1978 PA 368, entitled
"Public health code,"
(MCL 333.1101 to 333.25211) by adding section 21526.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 **Sec. 21526. (1) Beginning June 1, 2027, except as otherwise**
2 **provided in subsection (3), a hospital shall not require a**
3 **registered professional nurse to work more than any of the**
4 **following:**

5 **(a) The registered professional nurse's regularly scheduled**
6 **hours according to the registered professional nurse's**
7 **predetermined work schedule.**

8 **(b) The hours for which the registered professional nurse is**
9 **considered to be on call or is called into work as a result of**



1 being on call.

2 (c) The hours for which the registered professional nurse has
3 voluntarily agreed to work that exceed the hours described in
4 subdivisions (a) and (b).

5 (2) Except as otherwise provided in this subsection, if a
6 registered professional nurse works 12 or more consecutive hours
7 for a hospital, the hospital shall provide the registered
8 professional nurse 8 consecutive hours of off-duty time immediately
9 after the registered professional nurse completes that shift. A
10 registered professional nurse who has voluntarily agreed to work
11 hours that exceed the hours described in subsection (1) (a) and (b)
12 may voluntarily waive a portion of the off-duty time required under
13 this subsection, but the registered professional nurse may not
14 waive more than 4 hours of required off-duty time in a 72-hour
15 period.

16 (3) Subsection (1) does not apply under any of the following
17 circumstances:

18 (a) During a declared state of emergency or a mass casualty
19 incident.

20 (b) If a registered professional nurse is assisting with a
21 patient-care procedure that extends beyond the registered
22 professional nurse's regularly scheduled hours according to the
23 registered professional nurse's predetermined work schedule and the
24 registered professional nurse's supervisor, other than a charge
25 nurse, determines that the absence of the registered professional
26 nurse during the patient-care procedure could have an adverse
27 effect on the patient.

28 (c) During the first 4 weeks immediately following the initial
29 declaration of a public health emergency under 42 USC 247d, if the



1 public health emergency is expected to significantly increase the
2 rate of patient hospitalization in this state.

3 (d) For 2 consecutive hours immediately following the end of a
4 registered professional nurse's regularly scheduled shift in a
5 hospital other than a hospital described in subdivision (e) if all
6 of the following are met:

7 (i) The registered professional nurse cannot be relieved due to
8 the unexpected absence of the oncoming registered professional
9 nurse who is intended to relieve the registered professional nurse.

10 (ii) The unexpected absence described in subparagraph (i) was
11 discovered at or within 1 hour before the commencement of the
12 oncoming scheduled shift.

13 (iii) The unexpected absence described in subparagraph (i) could
14 not have been prudently planned for by the hospital and it could
15 significantly impact patient safety.

16 (e) For 4 consecutive hours immediately following the end of a
17 registered professional nurse's regularly scheduled shift in a
18 hospital meeting the requirements described in section 110a(4) (b)
19 of the social welfare act, 1939 PA 280, MCL 400.110a, if all of the
20 following are met:

21 (i) The registered professional nurse cannot be relieved due to
22 the unexpected absence of the oncoming registered professional
23 nurse who is intended to relieve the registered professional nurse.

24 (ii) The unexpected absence described in subparagraph (i) was
25 discovered at or within 1 hour before the commencement of the
26 oncoming scheduled shift.

27 (iii) The unexpected absence described in subparagraph (i) could
28 not have been prudently planned for by the hospital and it could
29 significantly impact patient safety.



1 (4) A hospital shall not discharge or discipline, threaten to
2 discharge or discipline, or otherwise discriminate against a
3 registered professional nurse who is an employee of the hospital
4 regarding the registered professional nurse's compensation, terms,
5 conditions, assignment, or privileges of employment because the
6 registered professional nurse refuses to accept a work assignment
7 that causes the registered professional nurse's hours to exceed the
8 hours described in subsection (1).

9 (5) A hospital shall post a notice that informs registered
10 professional nurses who are employed by the hospital of this
11 section and how to file a complaint with the department for a
12 suspected violation of this section. The hospital shall post the
13 notice described in this subsection in 1 or more conspicuous places
14 where notices to employees of the hospital are customarily posted
15 and, if the hospital uses an intranet site to communicate with its
16 employees, on the hospital's intranet site.

17 (6) A hospital that violates this section is subject to the
18 administrative fines prescribed in section 20165.

19 (7) If a collective bargaining agreement is in effect for
20 employees of a hospital as of June 1, 2027, and if that collective
21 bargaining agreement prevents compliance with this section, then
22 this section does not apply until after the expiration of that
23 collective bargaining agreement.

24 (8) As used in this section:

25 (a) "Declared state of emergency" means an emergency that is
26 declared by a person authorized by the federal government, a local
27 government, or this state and that is related to a circumstance
28 that is unpredictable or unavoidable, affects the delivery of
29 medical care, and requires an immediate or exceptional level of



1 emergency or other medical services at the hospital. Declared state
2 of emergency does not include a public health emergency described
3 in subsection (3)(c) or an emergency that results from a labor
4 dispute in the health care industry or consistent understaffing in
5 the hospital.

6 (b) "Mass casualty incident" means an event with a number of
7 casualties that vastly exceeds the hospital's resources and
8 capabilities and that occurs in a short and defined period of time.

9 (c) "Registered professional nurse" means that term as defined
10 in section 17201.

11 (d) "Registered professional nurse's predetermined work
12 schedule" means the work schedule for the registered professional
13 nurse that is scheduled more than 24 hours before the beginning of
14 the registered professional nurse's shift at the hospital.

15 Enacting section 1. This amendatory act does not take effect
16 unless Senate Bill No. 297 of the 103rd Legislature is enacted into
17 law.